



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
LGU TIN: 000794065
Official Email Add: sbprietodiaz@gmail.com



Office of the Secretary to the Sangguniang Bayan

FILE COPY



1st Endorsement
March 31, 2025

SBOC - 03312025 - 151

OFFICE of the SANGGUNIANG BAYAN
LOCAL GOVERNMENT UNIT
Prieto Diaz, Sorsogon

RELEASED

BY: SHAIRA E. HUERTAS

DATE: 3/31/25 TIME: 3:20 PM

Respectfully transmitted to Sangguniang Panlalawigan through **HON. KRUNIMAR ANTONIO D. ESCUDERO II**, Vice Governor, the herein attached Ordinance No. 2025-03 entitled: **"AN ORDINANCE REGULATING THE SALE AND USE OF ELECTRIC CIGARETTES OR VAPES TO MINORS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON"** for its review, information and appropriate action.

for: *Shuets*
BERNADETTE R. ESPEÑA- YAL
Secretary to the Sangguniang Bayan

Cc:

- Hon. Romeo D. Domasian
Municipal Mayor
- Dr. Jenifer T. Bernaldez
MHO
- Ms. Betty Arines
MSWDO
- Hon. Antonio J. Emano, Jr.
LnB President
- Ms. Gemma D. Ferrer
Municipal Treasurer

INVALID



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
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Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON MARCH 17, 2025 AT THE BARANGAY HALL OF TUPAZ, PRIETO DIAZ, SORSOGON

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/Presiding Officer
Hon. Jo Madel D. Domalaon	S. B. Member
Hon. Bienvenido D. Ayo, Jr.	S. B. Member
Hon. Luis Lee E. Espeña, Jr.	S. B. Member
Hon. Alice D. Emano	S. B. Member
Hon. Juan D. Ebid	S. B. Member
Hon. Albert D. Destura	S. B. Member
Hon. Joseph H. Yap, Jr.	S. B. Member
Hon. Antonio J. Emano, Jr.	LnB Pres. /S. B. Member
Hon. Rene Joseph D. Domasian	SKMF Pres./S.B. Member

ABSENT:

Hon. Rodolfo E. Diolata	S.B. Member / on leave
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ORDINANCE NO. 2025-03

Invalid as per
SP Reso. No. 208-2025

Introduced by Hon. Alice Emano

AN ORDINANCE REGULATING THE SALE AND USE OF ELECTRIC CIGARETTES OR VAPES TO MINORS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON

Be it ordained by the Sangguniang Bayan in session assembled that:

SECTION 1. SHORT TITLE

This ordinance shall be known as the "Vape Regulation for Minors Ordinance of Prieto Diaz, Sorsogon."

SECTION 2. PURPOSE

It is the purpose of this ordinance to safeguard public health and ensure the well-being of the minors by protecting them from the harmful effects of vapes.

SECTION 3. DEFINITION OF TERMS

Words and phrases used in this ordinance shall mean:

- Electric Nicotine Delivery system (ENDS) - which shall include Electric Non-Nicotine Delivery System (ENNDS) for purposes of this regulation, means any device such as electric cigarettes (e-cigarettes), electric shisha (e-shisha), vapes, vapes pen. Heat-Not-Burn products, and other similar devices, whether it is used to deliver

nicotine and/or other components to the user, which may be through the act of vaping or that which resembles smoking and may have the outward appearance of smoking products.

- b. Minors - refers to any person below eighteen (18) years of age
- c. Republic Act No. 11900 – is a law in the Philippines which aims to regulate the importation, sale, packaging, distribution, use and communication of vaporized nicotine and non-nicotine products and novel tobacco products, such as electronic cigarettes and heated tobacco products.
- d. Vape - an electronic cigarette (e-cigarette), or vape refers to a small hand-carry device that convert liquid into mist with different flavors that can be inhaled into lungs. It uses battery to heat up special liquid which usually contains nicotine and other chemicals.
- e. Vaping – refers to the act of inhaling and exhaling aerosols or vapor produced by any Electric Nicotine Delivery Systems (ENDS)/Electronic Non-Nicotine Delivery systems (ENNDS) or other Electronic Device whether it is used to deliver nicotine to the user and mimics the act of smoking
- f. Vaporized Nicotine- refers to the nicotine inhaled through e-cigarettes, vaping products, or other electronic nicotine delivery system (ENDS). Nicotine-infused aerosol produced by heating a liquid solution (e-liquid) containing nicotine, flavors, and other chemicals.
- g. BCPC- Barangay Council for the Protection of Children

SECTION 5. PROHIBITED ACTS. The following acts are declared unlawful and prohibited by the ordinance:

- 1. For a minor
 - a. For a minor to be using, selling and buying or in possession of vapes / e-cigarettes or any other novel tobacco products
- 2. For the establishments/ stores
 - b. Selling, distributing or purchasing of vapes/novel tobacco products to and from minors even beyond the 100 meters perimeter of a school, playground or other facility frequented by minors
 - c. Placing/posting, promoting, distributing, advertising materials of vapes/novel tobacco products, such as leaflets, posters or distribute and similar materials, within the 100 meters perimeter of a school, playground or other facility frequented by minors, as provided in Section 9 of RA 11900

SECTION 6. IMPLEMENTATION. The members of the Philippine National Police, Municipal Health Office (MHO), Municipal Social Welfare and Development Office (MSWDO), School Authorities, Barangay Officials and Barangay Tanod are hereby enjoined to enforce the provisions of this ordinance with the assistance of BCPC members.

Minors who are caught violating this ordinance shall be brought to the Barangay and shall be referred to Barangay Council for the Protection of Children (BCPC).

SECTION 7. PENAL PROVISION. Violators of this ordinance shall be meted out with the following:

For the minors:

1st Offense: Reprimand/ counselling by the School Authority and/or MHO

2nd Offense: Community Service for six (6) hours in the barangay under the supervision of a Brgy. Tanod/Parents of the minor

3rd Offense: Eight (8) hours community service in the barangay, where the offense committed under the supervision of a Brgy. Tanod/ Parents of the minor

1. For the establishments/ stores

1st Offense: Community Service of one (1) day

2nd Offense: Community Service of two (2) days

3rd Offense: fine of P 2,500 and suspension of Mayor's/Business Permit

SECTION 8. PAYMENT

Payment of fines shall be made at Office of the Municipal Treasurer.

SECTION 9. SEPARABILITY CLAUSE

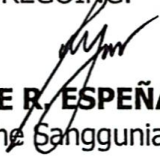
If, for any reason, any provision of this ordinance or any part thereof shall be held unconstitutional and invalid, the other parts or provisions of this ordinance, which are not affected thereby, shall remain in full force and effect.

SECTION 10. EFFECTIVITY CLAUSE. This ordinance shall take effect immediately upon the completion of the publication requirement as provided for in the LGC of 1991.

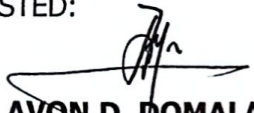
ENACTED: March 17, 2025

Let copies of this ordinance be forwarded to the Sangguniang Panlalawigan through Vice Governor Hon. Krunimar Antonio D. Escudero II, MDMG; copy furnished Hon. Romeo D. Domasian, Municipal Mayor; Dr. Jenifer Bernaldez, MHO, Municipal Health Office; Ms. Betty Arines, MSWDO; Hon. Antonio Emano, Jr., LnB President; Ms. Gemma Ferrer, Municipal Treasurer; and all concerned for their information and appropriate action.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer

APPROVED:


Hon. ROMEO D. DOMASIAN, PhD
Municipal Mayor
Date approved: MAR 31 2025¹



Republic of the Philippines
PROVINCE OF SORSOGON
Sorsogon City



SANGGUNIANG PANLALAWIGAN

SP Building, Gov. Augusto G. Ortiz Drive corner Gov. Salvador C. Escudero, Sr. Drive,
Capitol Compound, Brgy. Burabod, East District, Sorsogon City

MAY 26 2025

May 22, 2025

TRANSMITTAL NO. **263-2025**

TRANSMITTAL FOR: THE HONORABLE SANGGUNIANG BAYAN

Thru: Ms. BERNADETTE E. YAO

Secretary to the Sangguniang Bayan

LGU – Prieto Diaz, Sorsogon

Respectfully transmitting the herein resolution approved by the 11th Provincial Board on **May 14, 2025 (146th Regular Session)** for your information and reference.

RESOLUTION NO. 208-2025

RESOLUTION DECLARING INVALID PRIETO DIAZ ORDINANCE NO. 2025-03, ENTITLED: "AN ORDINANCE REGULATING THE SALE AND USE OF ELECTRIC CIGARETTES OR VAPES TO MINORS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON."

Prepared by:


RHEA T. DIESTA

Local Legislative Staff Officer III

Noted:


Eduardo S. Morata Jr.
Supervising Admin. Officer


ATTY. RODOLFO C. DEALCA, JR.

Secretary to the Sangguniang Panlalawigan

SBIC - 05262025 - 134

OFFICE of the SANGGUNIANG BAYAN LOCAL GOVERNMENT UNIT Prieto Diaz, Sorsogon	
RECEIVED	
BY: 	
DATE: 5/26/25	TIME: 8:30 AM



Republic of the Philippines
PROVINCE OF SORSOGON
Sorsogon City



MAY 26 2025

SANGGUNIANG PANLALAWIGAN

*SP Building Gov. Augusto G. Ortiz Drive corner Gov. Salvador C. Escudero, Sr. Drive,
Capitol Compound, Brgy. Burabod, East District, Sorsogon City-4700*

EXCERPT FROM THE JOURNAL OF THE 146th REGULAR SESSION OF THE 11TH PROVINCIAL BOARD ON MAY 14, 2025 AT THE SP SESSION HALL, SANGGUNIANG PANLALAWIGAN BUILDING, GOV. AUGUSTO G. ORTIZ DRIVE COR. GOV. SALVADOR C. ESCUDERO, SR. DRIVE, CAPITOL COMPOUND, BRGY. BURABOD, EAST DISTRICT, SORSOGON CITY.

PRESENT:

Hon. Krunimar Antonio D. Escudero II, Vice Governor/Presiding Officer

1ST DISTRICT

Hon. John Ryan C. Dioneda
Hon. Maria "Nini" O. Ravanilla
Hon. Ralph Walter R. Lubiano
Hon. Edmundo A. Atutubo
Hon. Rommel John C. Mella

2ND DISTRICT

Hon. Ramil M. Robles
Hon. Benito L. Doma
Hon. Roland R. Añonuevo
Hon. Eduardo E. Ong Jr.

EX-OFFICIO

Hon. Ramon B. Escudero – Provincial President, Philippine Councilors League
Hon. Jose Arturo D. Enano – Provincial President, Liga ng mga Barangay
Hon. Karl Marx H. Lozada* – Provincial President, Sangguniang Kabataan Federation

*Absent

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RESOLUTION NO. 208-2025

RESOLUTION DECLARING INVALID PRIETO DIAZ ORDINANCE NO. 2025-03, ENTITLED: "AN ORDINANCE REGULATING THE SALE AND USE OF ELECTRIC CIGARETTES OR VAPES TO MINORS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON."

WHEREAS, submitted to the Sangguniang Panlalawigan of Sorsogon was Prieto Diaz Ordinance No. 2025-03 for review and appropriate action;

WHEREAS, the ordinance intends to safeguard public health and ensure the well-being of minors by protecting them from the harmful effects of vapes through regulation of its sale and use;

WHEREAS, in the case of City of Manila vs. Laguio, Jr. (G.R. No. 118127) established the test to determine the validity of a local ordinance, it must conform with the following substantive requirements: (1) must not contravene the Constitution or any statute; (2) must not be unfair or oppressive; (3) must not be partial or discriminatory; (4) must not prohibit but may regulate trade; (5) must be general and consistent with public policy; and (6) must not be unreasonable;

WHEREAS, the Board calls the attention of the Sangguniang Bayan of Prieto Diaz to "SECTION 7. PENAL PROVISION" of the subject ordinance. The latter provision supersedes what is provided by R.A. No. 11900, otherwise known as the "Vaporized Nicotine and Non-Nicotine Products Regulation Act" when it imposed penalties different from what is provided in Section 23 of the said national law. Further, penalizing of minors is not included in the provision of the said national law, wherein, Section 23 (b)(iii) only state that minors undergo intervention program implemented by the Department of Health (DOH) and the Department of Social Welfare and Development (DSWD). Furthermore, local ordinances, however laudable their objectives might be, should not contravene State-enacted legislation, since local government units have no power to regulate such. The reason is that the legislative power of local councils is merely delegated, hence they cannot undo acts of Congress, the body from which they derive their legislative power;

WHEREAS, Section 21 of R.A. No. 11900 also states that DTI shall have exclusive jurisdiction over any and all issues, requirements, and subject matters related to Vaporized Nicotine and Non-Nicotine Products, and their devices, as well as Novel Tobacco Products, which are provided for in this Act;

WHEREAS, Prieto Diaz Ordinance No. 2025-03 failed the first and fourth test in determining the validity of an ordinance. Hence, it is *ultra vires*;

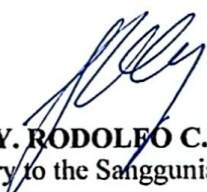
NOW, THEREFORE, on motion of Hon. Edmundo A. Atutubo, jointly seconded by Hon. Ramon B. Escudero and Hon. Maria "Nini" O. Ravanilla, the Board **RESOLVED**, as it is hereby **DONE**, to **DECLARE INVALID PRIETO DIAZ ORDINANCE NO. 2025-03, ENTITLED: "AN ORDINANCE REGULATING THE SALE AND USE OF ELECTRIC CIGARETTES OR VAPES TO MINORS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON."**

LET COPIES of this resolution be furnished Mayor Romeo D. Domasian and the Sangguniang Bayan of Prieto Diaz, Sorsogon for their information and guidance.

APPROVED.

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I HEREBY CERTIFY to the correctness of the foregoing.


ATTY. RODOLFO C. DEALCA, JR.
Secretary to the Sangguniang Panlalawigan

ATTESTED:


HON. KRUNITMAR ANTONIO D. ESCUDERO II, MDMG
Vice Governor/Presiding Officer 